

FEDERAL MARITIME COMMISSION

Docket No. 23-13

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

EASY SHIPPING CORPORATION,

RESPONDENT.

COMPLAINANT’S PROPOSED FINDING OF FACT

TO THE HONORABLE Alex M. Chintella:

Pursuant to the Scheduling Order on March 18, 2024, Complainant, USL AUTO EXPORTING INC. (hereinafter "Complainant"), by and through the undersigned manager, respectfully submits this *PROPOSED FINDING OF FACT*.

In preparation for our brief, it is essential to outline the key facts of this case that stand beyond the realm of genuine dispute. These facts, which will be discussed in detail in the forthcoming brief, establish the foundation of the Complainant's position and substantiate the request for a judgment in favor of the Complainant. The undisputed facts are as follows:

	Fact	Source
1.	Respondent did not effectively answer the interrogatories.	(Ex. N, CX_116 to CX_119)

2.	Respondent did not provide any document that may rebut the allegations of the Complainant	(Ex. N, CX_121 to CX_122)
3.	In its Answer, Respondent confirmed via Exhibit A that it received an email from Khalid Arwini identifying the vehicle as a 2005 Toyota T	(Ex. A, CX_11)
4.	Respondent admitted that they submitted the AES ITN with U.S. Customs using the Electronic Export Information	(Answer ¶ 9; Ex. A, CX_4)
5.	Respondent's in-house Bill of Lading, provided as Exhibit F, contained the AES ITN and was sent to Complainant for title validation with U.S. Customs, listing the vehicle as a 2005 Toyota Tundra.	(Ex. A, CX_27)
6.	In Exhibit G, Respondent filed with U.S. Customs the AES ITN online, indicating the vehicle as a 2005 TOYOTA Tundra.	(Ex. A, CX_30)
7.	Respondent admitted that they received the titles from Complainant.	(Answer ¶ 7; Ex. A, CX_4)
8.	Exhibit E from Respondent presented vehicle titles, which identified the vehicle as a 2005 Toyota Tundra.	(Ex. A, CX_23)
9.	Respondent's defense by general denials and reliance on disclaimers.	(Answer ¶ 8; Ex. A, CX_4)
10.	In Exhibit K, Respondent shows communication from Respondent with CMA CGM S.A., stating the misdeclaration of the shipment and the resulting return of the container.	(Ex. A, CX_44)
11.	Respondent admitted his knowledge of the container was to be returned.	(Answer ¶ 14; Ex. A, CX_5)
12.	Complainant, as evidenced in the emails with CMA CGM, received the draft of the original bill of lading identifying the vehicle as a 2017 TOYOTA 4Runner.	(Ex. F, CX_89)
13.	Respondent in Exhibit M provided an email, dated	(Ex. A, CX_49)

	July 6, 2024, that was sent from Complainant notifying them that the container had arrived at Savannah and Respondent should work on pulling out the container.	
14.	Respondent had only partially paid invoice NAOB0367804, resulting in a deficit of \$310.52.	(Ex. K, CX_109)
15.	Respondent admitted that they sent the in-house bill of lading to Complainant.	(Answer ¶ 8; Ex. A, CX_4)
16.	Respondent admitted that Complainant notified them that the container had arrived at Savannah and they should work on clearance of the container.	(Answer ¶ 15; Ex. A, CX_5)
17.	Respondent admitted that Complainant communicated with CMA CGM S.A. to get the container released.	(Answer ¶ 17; Ex. A, CX_5)
18.	Respondent admitted that Complainant requested the return bill of lading to work on the clearance.	(Answer ¶ 16; Ex. A, CX_5)
19.	Respondent provided Complainant's email requesting the return bill of lading to work on the clearance.	(Ex. A, CX_51)
20.	Respondent accused Complainant of fraudulent corresponding.	(Answer ¶ 19; Ex. A, CX_6)
22.	Communications from CMA CGM S.A., as referenced in Respondent's Exhibit H (Ex. A, CX_36), contain no indication that the container was returned on account of a 2012 Yamaha.	(Ex. A, CX_36)
21.	Respondent's claim in Answer ¶ 13 that Complainant loaded a Tundra instead of a TOYOTA 4Runner misrepresents the facts.	(Answer ¶ 13; Ex. A, CX_5)
22.	Respondent in Answer ¶ 19, falsely accuses Complainant of fraudulently contacting CMA CGM S.A.	(Answer ¶ 19; Ex. A, CX_6)
23.	Through Exhibit S, Respondent sent an email on December 20, 2023, to CMA CGM S.A., claiming Khalid Arwini impersonated an employee.	(Ex. A, CX_67)

DATED: June 20, 2024,

Respectfully submitted,

USL AUTO EXPORTING INC.,

By: s/ANIS HOUSSEIN

ANIS HOUSSEIN

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Vice President for COMPLAINANT

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 21st day of June 2024, a true and correct copy of the foregoing COMPLAINANT'S PROPOSED FINDING OF FACT was served via electronic mail on:

EASY SHIPPING CORPORATION
(fracati@rafatilegal.com)

s/ANIS HOUSSEIN

Anis Houssein

Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,